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Course Summary Document

Digital Law and Data Protection

Chapter 3: Algerian Regulatory & Control Authorities

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Introduction

Algeria's digital transformation relies on three inextricably linked components: **technical infrastructure** (physical networks, cables, wireless), **digital data** (personal and sensitive citizen/institutional information), and **national security** (protection against cybercrime and cyberattacks). To maintain order, safeguard privacy, protect sovereignty, and secure critical infrastructure, the Algerian state established an integrated framework of Independent Administrative Authorities (AAIs), specialized expertise agencies, and judicial investigation bodies.

1. ANPDP (National Authority for Personal Data Protection)

1.1. Identity and Legal Establishment

- **Establishment & Basis:** Instituted by Law No. 18-07 (June 10, 2018) concerning the protection of physical persons in personal data processing.
- **Legal Status:** Independent Administrative Authority attached to the Presidency of the Republic, possessing legal personality and financial autonomy. Headquartered in Algiers.
- **Institutional Activation:** Members formally installed in 2022; actively reviewing processing declarations, authorization requests, and legal advisory requests (officially recorded in early 2024).
- **Digital Procedures:** Provides formal guidelines and procedural frameworks for entities submitting authorization requests and declarations.

1.2. Scope of Intervention

Intervenes in IT projects involving personal data processing under Law 18-07 across four key operational stages:

- **1. Prior to Processing:** Data controllers must satisfy declaration or authorization requirements (Art. 12) and strictly adhere to principles of legality, fairness, purpose limitation, data minimization, accuracy, and storage limitation.
- **2. Sensitive Data & International Transfers:** Biometric and health data require enhanced legal analysis. Cross-border transfers require ANPDP authorization (Art. 44). Subcontracting and foreign cloud usage require formal compliance contracts, security guarantees, and regulatory authorization.
- **3. System Operations:** Controllers must maintain updated records, inform ANPDP of system changes, implement technical/organizational safeguards, respect data subject rights, and document security compliance.
- **4. Complaints & Data Breaches:** Processes citizen complaints. In case of a security breach, controllers must manage the incident, mitigate consequences, and notify both the ANPDP and data subjects (Arts. 43 & 66).

1.3. Missions and Powers

- **Application Processing:** Reviews declarations, authorization requests, and formal complaints; issues receipts, approvals, or rejections.
- **National Register:** Maintains the official National Register of Personal Data Processing.
- **Control & Inspection:** Conducts on-site and documentary audits regarding compliance, storage, security, and subcontracts.
- **Administrative Sanctions:** Issues warnings, formal notices, suspensions, permit revocations, and

administrative fines (Arts. 25 & 46).

- **Prosecutorial Referral:** Refers potential criminal infractions directly to the competent Prosecutor General.

1.4. Territorial Organization

Headquartered in Algiers with jurisdiction across the national territory. Creation of specific permanent regional audit hubs requires explicit regulatory authorization.

1.5. Security, Traceability, and Responsibility

Controllers must implement robust measures: access controls, encryption, system logging, network segmentation, secure backups, and staff security awareness.

1.6. Biometric and Health Data

Processing sensitive biometric (e.g., facial recognition) or health data requires legal proportionality, strict necessity, clear user notice, and enhanced safeguards.

1.7. Hypothetical Case Study: Private Clinic in Oran

- **Scenario:** An Oran private clinic deploys facial recognition for staff access to operating rooms and backs up patient files to a European cloud without prior ANPDP authorization or staff notice.
- **Legal Analysis:** Raises issues regarding biometric necessity, lack of prior declaration/authorization, cross-border data transfers, and compliance with cloud subcontractor contracts.
- **ANPDP Action:** ANPDP can audit documentation, demand compliance, issue administrative sanctions, or refer potential criminal breaches to the Prosecutor General.

2. ARPCE (Postal and Electronic Communications Regulatory Authority)

2.1. Identity and Evolution

- **Establishment & Evolution:** Originally established as ARPT under Law No. 2000-03; modernized and restructured under Law No. 18-04 (May 10, 2018) as an independent administrative body with legal personality and financial autonomy.
- **Scope of Action:** Regulates postal and electronic communications markets, market competition, infrastructure sharing, spectrum assignment, equipment type-approval, and service quality.

2.2. Solicitations and Operational Triggers

- **Telecom Operators:** Issues/renews network operating licenses (3G/4G/5G, FTTH, ADSL), assigns frequency bands, allocates numbering resources, and resolves operator disputes.
- **Equipment Approval:** Mandatory technical type-approval for radio and terminal equipment connected to public networks prior to import or commercialization.
- **Private Networks, VSAT & VoIP:** Regulates private radio links, VSAT networks (licenses up to 15 years), and call center operations.

2.3. Missions and Powers

- **Market Regulation & Competition:** Ensures fair competition and mandatory infrastructure sharing among operators.
- **Frequency & Jamming Control:** Assigns public frequencies (allocated by ANF) and monitors radio

spectrum interference.

- **Quality of Service (QoS):** Monitors network coverage and enforcement of operator license specifications.
- **Type-Approval & Dispute Resolution:** Issues 5-year technical conformity certificates for equipment and arbitrates operator/subscriber disputes.

2.4. Sanctions and Administrative Decisions

- **QoS Sanctions (Oct 2024):** Issued major financial penalties totaling 1,053,325,166.30 DA against mobile operators for coverage and service quality failures:

Mobile Operator	Penalty Amount (DZD)
ATM — Mobilis	721,802,502.42 DA
OTA — Djezzy	82,026,182.13 DA
WTA — Ooredoo	249,496,481.75 DA
Total Penalties	1,053,325,166.30 DA

- **Subscriber Identification:** Mandates full subscriber identity registration before line activation under penalty of suspension.

2.5. Hypothetical Case Study: Radio Interference in Hassi Messaoud

- **Scenario:** A industrial logistics firm in Hassi Messaoud deploys unauthorized VSAT and industrial radio links, causing spectrum interference.
- **ARPCE Action:** ARPCE conducts signal analysis, verifies equipment type-approvals, demands immediate emission halt, and coordinates legal sanctions for unapproved radio operation.

3. ASSI (Information Systems Security Agency)

3.1. Identity and Institutional Framework

- **Legal Origin:** Instituted under Presidential Decree No. 20-05 (Jan 20, 2020) establishing the national information systems security framework.
- **Status & Attachment:** Public administrative establishment with legal personality and financial autonomy, attached to the Ministry of National Defense. Headquartered in Algiers.
- **Governance Structure:** Operates under the National Information Systems Security Council (strategic direction), while ASSI coordinates operational implementation. Defense systems are excluded.

3.2. Scope of Coordination and Intervention

Assists public administrations and strategic operators in cybersecurity organization, RSSI (CISO) appointments, security solution accreditation, and incident coordination.

3.3. Missions and Powers

- **Guidelines & Strategy:** Drafts national cybersecurity standards, baseline policies, and security

recommendations.

- **Audit & Homologation:** Oversees IS security audits, accredits providers, and certifies security hardware/software products.
- **Threat Intelligence & CNOSSI:** Houses the National Operational Center for Information Systems Security; maintains the national vulnerability map.
- **Digital Investigations & Incident Response:** Conducts technical forensics during major cyberattacks on national institutions and coordinates remediation.

3.4. Organization

Directed by a Director General, advised by an Orientation Committee (multi-ministerial representatives, ARPCE, ANPDP, security services) and a Scientific Committee.

3.5. Hypothetical Case Study: Ransomware on Energy Infrastructure

- **Scenario:** An energy operator detects malware and data exfiltration targeting SCADA networks via an insecure remote VPN.
- **ASSI Action:** ASSI assists in threat containment, provides forensic analysis, isolates compromised segments, recommends MFA/patching, and enriches the national vulnerability database.

4. INCC/GN (National Institute of Forensics and Criminology of the National Gendarmerie)

4.1. Identity and Institutional Role

- **Legal Basis:** Created by Presidential Decree No. 04-183 (June 26, 2004) under the Ministry of National Defense. ISO/IEC 17020 and 17025 accredited.
- **Judicial Function:** Provides scientific, technical, and forensic expertise to judicial authorities and investigative bodies. Does not render judicial decisions.

4.2. Operational Triggers

Intervenes upon formal requisition by judicial authorities (investigating judges, prosecutors) following seizures of digital evidence.

4.3. Missions and Analysis Methods

- **Digital Forensics:** Executes bit-stream disk imaging, volatile RAM analysis, deleted file recovery, log examination, and malware reverse-engineering.
- **Chain of Custody:** Strictly maintains evidence integrity using hardware write-blockers, cryptographic hashing, and chain-of-custody documentation.
- **Expert Reports:** Submits objective technical expert reports detailing methodology, findings, and analytical limits to the court.

4.4. Hypothetical Case Study: Cyberattack on a Commercial Bank

- **Scenario:** Fraudulent fund transfers and database table deletions occur using stolen executive credentials.
- **INCC Forensic Process:** Extracts RAM/disk images, correlates system logs, traces unauthorized commands, and provides court-admissible forensic evidence.

5. National Penal Pole for Combating Cybercrime (TIC)

5.1. Identity and Legal Framework

- **Legal Establishment:** Specialized judicial body established at the Algiers Court of First Instance via Order No. 21-11 (2021) amending the Code of Criminal Procedure.
- **Jurisdiction:** Exclusive nationwide jurisdiction over highly complex, organized, transnational, or state-security-threatening ICT offenses.

5.2. Key Missions

- **Judicial Pilotage:** Centralizes, directs, and supervises complex cybercrime prosecutions, investigations, rogatory commissions, and trials.
- **International Cooperation:** Executes cross-border mutual legal assistance, extradition requests, and international judicial coordination.

6. ONPLI-TIC (National Authority for the Prevention and Combating of ICT Crimes)

6.1. Identity and Institutional Framework

- **Legal Basis:** Established under Law No. 09-04 (August 5, 2009) setting special rules for preventing and combating ICT-related crimes.
- **Nature:** Inter-institutional coordination, prevention, and technical support body assisting judicial and security agencies.

6.2. Key Missions and Comparative Analysis

- **Missions:** Coordinates inter-agency preventive strategies, facilitates technical expertise, and exchanges cyber-threat information.
- **Comparative Distinction (ONPLI-TIC vs. National Penal Pole):**

Feature	ONPLI-TIC (Law 09-04)	National Penal Pole (Order 21-11)
Legal Nature	Inter-institutional coordination & support body	Specialized judicial court (Algiers Court)
Primary Focus	Prevention, strategy, inter-agency coordination	Prosecution, judicial investigation, trial
Judicial Authority	Does not issue judicial rulings or indictments	Issues warrants, indictments, and trial judgments
Operational Role	Upstream support, information exchange, expertise	Core criminal justice enforcement & international assistance

7. Comprehensive Case Study: Cyberattack on National Telemedicine Platform (e-Health)

Scenario Overview

A national e-Health platform centralizing medical records for millions of citizens suffers a dual attack: a severe ransomware outbreak encrypting central systems and a massive data exfiltration leaked on Telegram.

Institutional Role Distribution Matrix

Authority	Primary Domain	Action & Role in Crisis Response
ASSI	System Security & National Coordination	Assists in containment, technical forensics, crisis mitigation, and CNOSSI/CERT threat intelligence.
ARPCE	Telecom Network Regulation	Audits telecom operators carrying traffic, verifying network security compliance and traffic traceability.
ANPDP	Personal Data Protection (Law 18-07)	Investigates health data breach, audits security compliance, enforces patient notice, and issues administrative fines.
National Penal Pole	Judicial Lead & Prosecution	Directs national criminal investigation, issues warrants/requisitions, and prosecutes perpetrators.
INCC/GN	Digital Forensics (INCC)	Performs bit-stream server imaging, RAM extraction, log analysis, and produces court-admissible forensic evidence.
ONPLI-TIC	Prevention & Coordination	Facilitates inter-agency info exchange, capitalizes post-incident lessons, and refines national prevention strategy.